

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #08	CCRB Case #: 201504970	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 06/06/2015 10:20 PM	Location of Incident: Northeast corner of Broadway and West 145th Street	18 Mo. SOL 12/6/2016	Precinct: 30
Date/Time CV Reported Sun, 06/07/2015 5:27 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/17/2015 4:13 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Gerasimos Pyramides	03024	947369	030 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Francheska Colon	10033	956538	030 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Gerasimos Pyramides	Discourtesy: PO Gerasimos Pyramides spoke rudely to § 87(2)(b) [REDACTED]	A . Unsubstantiated
B . POM Gerasimos Pyramides	Force: PO Gerasimos Pyramides used physical force against § 87(2)(b) [REDACTED]	B . Exonerated

Case Summary

This complaint was reported by phone to IAB by Sgt. Sean Monahan from the 30th Precinct on June 7, 2015. Sgt. Monahan reported a prisoner injured while in police custody.

§ 87(2)(b) left a barbeque near Broadway and West 145th Street in Manhattan at approximately 10:20 p.m. on June 6, 2015. § 87(2)(b) was with two friends, § 87(2)(b) and § 87(2)(b) and his friends were trying to hail a cab. A cab stopped but the driver refused to take § 87(2)(b) and his friends. § 87(2)(b) became involved in a dispute with the cab driver and hit the hood of the cab. PO Gerasimos Pyramides and PO Francheska Colon were driving by and saw § 87(2)(b) hit the cab. PO Pyramides began investigating the situation and allegedly said to § 87(2)(b) “Shut the fuck up and give me your ID.” (**Allegation A**). PO Pyramides attempted to arrest § 87(2)(b) for causing damage to the cab’s windshield. § 87(2)(b) resisted and was brought to the ground (**Allegation B**). § 87(2)(b) sustained a § 87(2)(b) during this incident and obtained medical treatment after he was taken to the 30th Precinct stationhouse.

§ 87(2)(b) was arrested and charged with § 87(2)(b)

Video footage from an NYPD TARU camera captured a portion of this incident. Video recorded by a witness was also provided by § 87(2)(b)

Mediation, Civil and Criminal Histories

- This case was ineligible for mediation due to the arrest of § 87(2)(b) and the hospital treatment he received for injuries sustained during the incident.
- The Office of the Comptroller responded to a request on August 19, 2015 indicating that no Notice of Claim was filed regarding this incident (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b) second CCRB complaint. § 87(2)(b)
- PO Pyramides has been a member of the service for seven years and has 18 CCRB allegations over that time including two substantiated allegations for abuse of authority for which the NYPD took no disciplinary action. PO Pyramides has five previous force allegations, three of which were exonerated, one unsubstantiated, and one in which the complainant was unavailable. PO Pyramides has four previous discourtesy allegations including two unsubstantiated allegations, one unfounded, and one in which the complainant was unavailable (Board Review 04).

Potential Issues

- Statements could not be obtained from two identified witnesses at the incident location. The taxi driver involved in this incident, § 87(2)(b) refused to cooperate with the investigator. One of § 87(2)(b) friends, § 87(2)(b) also could not be reached to provide a statement.

Findings and Recommendations

Allegation A - Discourtesy: PO Gerasimos Pyramides spoke rudely to § 87(2)(b)

§ 87(2)(b) testified that he was trying to hail a cab after attending a barbeque at a park near Broadway and West 145th Street (Board Review 05). § 87(2)(b) stated that he had had “a little too much to drink” at the party. A black livery cab stopped but the driver refused to take § 87(2)(b) and his friends. The cab driver said, “I’m not taking you niggers.” § 87(2)(b) argued with the cab driver for less than five minutes. § 87(2)(b) hit the hood of the cab with his fist and started to walk away. PO Pyramides and PO Colon arrived at the scene. After briefly speaking with the cab driver, PO Pyramides told § 87(2)(b) to come toward him. § 87(2)(b) tried to explain to PO Pyramides what had happened. PO Pyramides interrupted § 87(2)(b) and said, “Shut the fuck up and give me your ID.”

§ 87(2)(b) is a friend of § 87(2)(b) and was with him at the barbeque on the incident date (Board Review 06). A phone statement was obtained from § 87(2)(b) on July 23, 2015. § 87(2)(b) stated that his friends were trying to hail a cab. A cab stopped but refused to take them. The cab driver said, “I don’t take niggers.” § 87(2)(b) started arguing with the cab driver. Police officers arrived at the location and spoke with the cab driver about what happened. After speaking with the cab driver, PO Pyramides stepped toward § 87(2)(b) told him to turn around, and started to handcuff him. § 87(2)(b) said, “For what? What’s going on? What am I being arrested for?” § 87(2)(b) did not remember what PO Pyramides said in response. § 87(2)(b) did not remember if PO Pyramides asked § 87(2)(b) for his ID before handcuffing him. § 87(2)(b) did not remember if PO Pyramides said, “Shut the fuck up and give me your ID.” § 87(2)(b) did not remember if any of the officers ever cursed at § 87(2)(b).

PO Colon testified that she and PO Pyramides were on patrol when they observed § 87(2)(b) strike the windshield of a livery cab with both fists (Board Review 07). PO Pyramides made a U-turn and parked behind the cab. The cab driver and § 87(2)(b) were arguing. § 87(2)(b) was trying to open the cab door but it was locked. PO Pyramides approached the cab driver and spoke with him. PO Colon did not know what PO Pyramides was saying to the cab driver or § 87(2)(b). While PO Pyramides was speaking with the cab driver, PO Colon was telling § 87(2)(b) friends’ to move over. PO Colon saw PO Pyramides trying to handcuff § 87(2)(b). PO Colon did not know if PO Pyramides asked § 87(2)(b) for his ID before handcuffing him. PO Colon did not hear PO Pyramides curse at § 87(2)(b) during this interaction. PO Colon did not hear PO Pyramides say “Shut the fuck up and give me your ID.”

PO Pyramides testified that § 87(2)(b) was walking in the middle of the street trying to hail a cab (Board Review 08). § 87(2)(b) struck the windshield of a livery cab that had stopped beside him with both fists. PO Pyramides made a U-turn and stopped near the cab. The cab driver pointed out § 87(2)(b) and said that he broke his windshield. PO Pyramides stepped toward § 87(2)(b) and told him that he was being placed under arrest. § 87(2)(b)

driver, PO Pyramides told § 87(2)(b) he was under arrest and grabbed his arms. PO Pyramides did not say anything before he grabbed § 87(2)(b) arms. § 87(2)(b) started to move his body away from PO Pyramides. § 87(2)(b) was holding a gold chain in his hand and was trying to put it in his pocket. § 87(2)(b) was asking why he was being arrested. PO Pyramides grabbed § 87(2)(b) arms again by his shoulders. PO Pyramides lifted § 87(2)(b) from under his shoulders and threw him toward the ground. § 87(2)(b) complained that his shoulder hurt after he hit the ground.

Video footage obtained from an NYPD camera captured the attempt by PO Pyramides and PO Colon to handcuff § 87(2)(b) (Board Review 11, Board Review 12). The video shows that the following occurred. On the passenger side of the cab, PO Pyramides reaches for § 87(2)(b) right arm. § 87(2)(b) and PO Pyramides walk toward the front of the cab. § 87(2)(b) has his body turned toward PO Pyramides. PO Pyramides starts to push § 87(2)(b) against the front hood of the cab. § 87(2)(b) lifts his body away from the hood of the car. PO Pyramides begins cuffing § 87(2)(b) right wrist. § 87(2)(b) pulls his right arm away from PO Pyramides. PO Pyramides grabs a hold of § 87(2)(b) right shoulder and pulls him to the right, out of frame of the camera.

§ 87(2)(b) submitted as evidence video footage recorded by one of his friends, § 87(2)(b) (Board Review 13, Board Review 14). § 87(2)(b) is seen face-down on the ground. § 87(2)(b) turns his head and torso to his left to face PO Pyramides. PO Pyramides pulls § 87(2)(b) right arm behind his back. § 87(2)(b) left arm is at his side. PO Colon is trying to pull § 87(2)(b) left arm behind his back. Two additional officers arrive. One of the officers pushes § 87(2)(b) torso down toward the pavement. § 87(2)(b) left arm is pulled behind his back. PO Pyramides handcuffs § 87(2)(b).

PO Colon testified that she saw PO Pyramides start to handcuff § 87(2)(b) (Board Review 07). § 87(2)(b) turned his body away from PO Pyramides and waved his arms by his side. PO Colon tried to help PO Pyramides pull § 87(2)(b) arms behind his back. PO Pyramides called for an additional unit to arrive at the incident location. PO Pyramides and PO Colon tried again to grab § 87(2)(b) arms. § 87(2)(b) continued pulling his arms away from the officers. § 87(2)(b) fell to the ground due to the momentum caused by his resistance and PO Pyramides' efforts to get him to the ground. PO Colon was unable to provide a description of how PO Pyramides was trying to get § 87(2)(b) to the ground. § 87(2)(b) did not complain about being in any pain after he fell to the ground. § 87(2)(b) never lost consciousness at the incident location or during transport to the stationhouse. § 87(2)(b) was compliant and walked into stationhouse on his own free will. At the stationhouse, PO Colon noticed that § 87(2)(b) was slurring his words and had a strong smell of alcohol. While he was being fingerprinted, § 87(2)(b) began to complain about pain to his arm. An ambulance was called to take § 87(2)(b) to § 87(2)(b).

PO Pyramides testified that the cab driver showed him where his windshield was broken and pointed out § 87(2)(b) as the person responsible (Board Review 08). PO Pyramides told § 87(2)(b) that he was under arrest. PO Pyramides grabbed § 87(2)(b) right hand to begin handcuffing him. § 87(2)(b) pulled his arm away from PO Pyramides, turned, and tried to walk away. PO Pyramides pulled § 87(2)(b) toward the cab and got behind him to handcuff him. § 87(2)(b) was facing the hood of the cab and was pushing against the car toward PO

Pyramides. PO Pyramides and PO Colon were both trying to grab § 87(2)(b) arms but he kept pulling his arms away. PO Pyramides called for an additional unit. § 87(2)(b) was complaining about why he was being arrested. PO Pyramides grabbed § 87(2)(b) by one of his shoulders. PO Pyramides turned his body and pulled § 87(2)(b) with him as he turned. As a result of this motion, PO Pyramides was able to push § 87(2)(b) to the ground. On the ground, § 87(2)(b) was still resisting arrest by pulling his arms underneath his body. The additional unit arrived after § 87(2)(b) was pushed to the ground. PO Medina helped grab § 87(2)(b) arms and place them behind his back to the handcuffed. § 87(2)(b) was not complaining about being in any pain after he hit the ground. PO Pyramides did not perceive § 87(2)(b) to be in any pain after he hit the ground. § 87(2)(b) did not lose consciousness at the incident location. § 87(2)(b) complained about being in pain sometime after midnight at the stationhouse.

Patrol Guide 203-11 states that officers “must use minimum necessary force” at the scene of a police incident (Board Review 15). The patrol guide goes on to say that “whenever it becomes necessary to take a violent or resisting subject into custody, responding officers should utilize appropriate tactics in a coordinated effort to overcome resistance.”

In PD v. Larsen (OATH Index 83060/07, Board Review 16), the complainant was brought to the ground after resisting efforts by a police officer to arrest her. The complainant was intoxicated on cocaine, though she did not acknowledge this fact. The complainant sustained injuries to her face on the ground. The force used to affect her arrest was found to be not excessive because the complainant was not only resisting arrest, but resisting in a manner which ultimately required five police officers to restrain her. § 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **Exonerated**.

Pod: 8

Investigator:	_____	_____	_____
	Signature	Print	Date

Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date